

DISSENTING SEPARATE OPINION
BY BARON ROLIN-JAEQUEMYS.

[*Translation.*]

The undersigned feels obliged shortly to indicate, in accordance with the right conferred upon him by Article 57 of the Statute and Article 62 of the Rules of Court, the reasons for which he dissents from the judgment delivered this day, in which the Court has decided by a majority to overrule the preliminary objection raised by the Lithuanian Government in regard to the last two questions (5 and 6) of the application instituting proceedings of the four Applicant Powers, whereby the Court was asked to say:

“(5) whether, in the circumstances in which it took place, the appointment of the Directorate presided over by M. Simaitis is in order;

(6) whether the dissolution of the Diet, carried out by the Governor of the Memel Territory on March 22nd, 1932, when the Directorate presided over by M. Simaitis had not received the confidence of the Diet, is in order”.

The undersigned holds that on the contrary this preliminary objection is justified by the fact that the jurisdiction of the Court to pass upon the above-mentioned points 5 and 6 can only rest on Article 17 (para. 2) of the Convention of May 8th, 1924, between the four Applicant Powers and Lithuania, and according to the terms of this provision the Court cannot be called upon to decide questions of this kind unless such questions have first been referred to the Council of the League of Nations under the first paragraph of the same Article 17.

This view in no way implies that the two paragraphs of Article 17 contemplate two successive phases of one and the same procedure, as contended by the Lithuanian Government in its Counter-Case of May 26th, 1932, referred to in the Court's judgment. Nor does it mean, as is said in the application filed on the same date by the Lithuanian Government

in support of its preliminary objection, "that paragraph 2 of Article 17 of the Convention of Memel regards a recourse to the Permanent Court of International Justice as a procedure only to be employed *after a failure* of the procedure before the Council of the League of Nations under paragraph 1 of the same Article 17". In the opinion of the undersigned, there is nothing to prevent the two procedures instituted by Article 17 of the Convention of 1924 being pursued simultaneously before the Council on the one hand and before the Court on the other, *providing that the Council is resorted to first.*

The undersigned however agrees that the wording of Article 17 is not as definite as it might be on this point. But, in view of the uncertainty which ensues therefrom, he feels that he cannot do better than refer in regard to this point to an opinion expressed, only two years after the signature of the 1924 Convention, by a Committee of Jurists constituted in the course of the year 1926 by the Council of the League of Nations, which opinion relates to the scope and working of this Convention, in connection with certain difficulties which had already arisen concerning the régime of the Memel Territory.

The authors of this report, which is dated September 3rd, 1926, and which was considered and approved by the Council at its meeting on September 20th of the same year, express themselves as follows :

"As regards an infraction of the Memel Convention, the Council cannot intervene except at the instance of a government member of the Council, and only in the case of a difference of opinion between the Lithuanian Government and one of the Principal Allied Powers members of the Council can such a dispute be brought before the Court of Justice...."

But this method of procedure has not been followed by the Principal Allied Powers, members of the Council, i.e. by the four Applicant Governments, in so far as concerns points 5 and 6 of their application. They have not waited until these questions had been submitted to the Council, as the question of the dismissal of M. Böttcher, the President of the Director-

ate—to which points 1 to 4 of the application refer—had been; nor have they themselves brought the questions set out in points 5 and 6 before the Council, as they might have done, and they have submitted these two questions direct to the Court, asking it, not to decide a dispute or a difference of opinion, but simply to express an opinion on certain acts of the Lithuanian Government.

It is true that it is stated in the Court's judgment that in view of the circumstances in which the Jurists' report was submitted, that report only envisages the question between what Parties a difference must exist in order that it may be brought before the Court under Article 17, paragraph 2, of the Convention, and the judgment reproduces in this connection the latter part of the passage in the above-mentioned report observing that the Lithuanian Government has specially adduced the French text of that report. This text states categorically that after the intervention of the Council, a difference must *subsist* in order to render it possible for the four Powers to have recourse to the Court, whereas the English text only makes of the *existence* of a dispute the condition for recourse to the Court. But no matter whether it is a question of a dispute which *subsists* or which *exists*, the Jurists' report nevertheless clearly indicates, in its interpretation of Article 17 of the Convention, that in the event of an infraction of the Convention, the matter must first be brought before the Council, and that "only in the case of a difference of opinion (*s'il subsiste une différence d'opinions*) between the Lithuanian Government and one of the Principal Allied Powers, members of the Council, can such a dispute be brought before the Court....". Accordingly, the matter must have been brought before the Council and a difference of opinion must subsist or exist thereafter between the Lithuanian Government and the four Powers in order to enable the latter to have recourse to the Court.

But it is precisely these conditions which have not been fulfilled in the two cases dealt with by the Court's judgment, and for this reason the undersigned considers that the Court should have upheld the objection to its jurisdiction raised by the Lithuanian Government in respect of the last two points

(5 and 6) of the application of the four Applicant Governments, and he is therefore unable to concur in the judgment of the Court overruling this objection.

At the same time, the undersigned feels that it is useful to point out that the action of the four Governments is calculated to lead the Court to intervene in a mere divergence of views, without any *legal dispute*, in the proper sense of the term, having as yet arisen therefrom, which would justify the Court in giving a decision in conformity with Articles 13 and 14 of the Covenant of the League of Nations, in accordance with Article 17 of the Convention of 1924 and in accordance with that which is expressly laid down in Article 36 of the Court's Statute. The attention of the Court may, moreover, be called to these particular questions during the deliberations on the merits of the above-mentioned points 5 and 6.

(Signed) ROLIN-JAEQUEMYS.